

CHAPTER – 8

NUISANCE

MEANING:

Nuisance can be defined as the unlawful interference with a person's use or enjoyment of land, or of some right over, or in connection with it.

TYPES OF NUISANCE:

The two types of nuisance are private nuisance and public nuisance.

A private nuisance [Tort of Nuisance] is a civil wrong it is the unreasonable, unwarranted, or unlawful use of one's property in a manner that substantially interferes with the enjoyment or use of another individual's property, without an actual Trespass or physical invasion to the land.

A public nuisance is a criminal wrong; it is an act or omission that obstructs, damages, or inconveniences the rights of the community. e.g. a manufacturer who has polluted a stream might be fined and might also be ordered to pay the cost of cleanup.

PRIVATE NUISANCE

A private nuisance is an interference with a person's enjoyment and use of his land. The law recognizes that landowners, or those in rightful possession of land, have the right to the unimpaired condition of the property and to reasonable comfort and convenience in its occupation.

Examples of private nuisances abound. Nuisances that interfere with the physical condition of the land include vibration or blasting that damages a house; destruction of crops; raising of a water table; or the pollution of soil, a stream, or an underground water supply.

Examples of nuisances interfering with the comfort, convenience, or health of an occupant are foul odours, noxious gases, smoke, dust, loud noises, excessive light, or high temperatures. Moreover, a nuisance may also disturb an occupant's mental tranquillity, such as a neighbour who keeps a vicious dog, even though an injury is only threatened and has not actually occurred.

An attractive nuisance is a danger likely to lure children onto a person's land. For example, an individual who has a pool on his property has a legal obligation to take reasonable precautions, such as erecting a fence, to prevent foreseeable injury to children. Trespass is sometimes confused with nuisance, but the two are distinct. A trespass action protects against an invasion of one's right to exclusive possession of land. If a landowner drops a tree across her neighbour's boundary line she has committed a trespass; if her dog barks all night keeping the neighbour awake, she may be liable for nuisance.

Legal Responsibility

A private nuisance is a tort, that is, a civil wrong. To determine accountability for an alleged nuisance, a court will examine three factors: the defendant's fault, whether there has been a substantial interference with the plaintiff's interest, and the reasonableness of the defendant's conduct.

(1) Fault

It means that the defendant intentionally, negligently, or recklessly interfered with the plaintiff's use and enjoyment of the land or that the defendant continued her conduct after learning of actual harm or substantial risk of future harm to the plaintiff's interest. For example, a defendant who continues to spray chemicals into the air after learning that they are blowing onto the plaintiff's land is deemed to be intending that result. Where it is alleged that a defendant has violated a statute, proving the elements of the statute will establish fault.

(2) Substantial Interference.

The law is not intended to remedy trifles or redress petty annoyances. To establish liability under a nuisance theory, interference with the plaintiff's interest must be substantial. Determining substantial interference in cases where the physical condition of the property is affected will

often be fairly straightforward. More challenging are those cases predicated on personal inconvenience, discomfort, or annoyance. To determine whether an interference is substantial, courts apply the standard of an ordinary member of the community with normal sensitivity and temperament. A plaintiff cannot, by putting his or her land to an unusually sensitive use, make a nuisance out of the defendant's conduct that would otherwise be relatively harmless.

(3) Reasonableness of Defendant's Conduct

If the interference with the plaintiff's interest is substantial, a determination must then be made that it is unreasonable for the plaintiff to bear it or to bear it without compensation. This is a Balancing process weighing the respective interests of both parties. The law recognizes that the activities of others must be accommodated to a certain extent, particularly in matters of industry, commerce, or trade. The nature and gravity of the harm is balanced against the burden of preventing the harm and the usefulness of the conduct.

The following are factors to be considered:

- Extent and duration of the disturbance;
- Nature of the harm;
- Social value of the plaintiff's use of his or her property or other interest;
- Burden to the plaintiff in preventing the harm;
- Value of the defendant's conduct, in general and to the particular community;
- Motivation of the defendant;
- Feasibility of the defendant's mitigating or preventing the harm;
- Locality and suitability of the uses of the land by both parties.

Defences

In an attempt to escape liability, a defendant may argue that legislation (such as zoning laws or licenses) authorizes a particular activity.

Legislative authority will not excuse a defendant from liability if the conduct is unreasonable. A defendant may not escape liability by arguing that others are also contributing to the harm; damages will be apportioned

according to a defendant's share of the blame. Moreover, a defendant is liable even where his or her actions without the actions of others would not have constituted a nuisance. Defendants sometimes argue that a plaintiff "came to a nuisance" by moving onto land next to an already operating source of interference. A new owner is entitled to the reasonable use and enjoyment of his or her land the same as anyone else, but the argument may be considered in determining the reasonableness of the defendant's conduct. It may also have an impact in determining damages because the purchase price may have reflected the existence of the nuisance.

IMPORTANT CASE LAWS:

Stone v/s Bolton – A nuisance must be a state of affairs. Isolated individual act cannot amount to nuisance. In that case, where ball reached the highway once or twice, in many years, so it could not be considered, a case of nuisance. So occasional reaching of ball cannot be considered, a dangerous state of affair.

Christie vs. Davey (1893)- The plaintiff has for several years been giving music lessons and holding musical evenings in his semi-detached house. The defendant, irritated by the noise, banged the party-walls, shouted, blew whistles and beat tin trays with the malicious intention of annoying his neighbour and spoiling the music lessons. An injunction was granted to restrain the defendant's behaviour.

Sturges vs. Bridgman - The defendant had operated a confectionery manufacturing business for more than 20 years when the plaintiff, a doctor, built a new set of consulting rooms in his garden immediately adjacent to the building which housed sweet-making machinery. The plaintiff then complained of nuisance from the noisy machinery and brought a successful legal action against the defendant. The court decided on the facts that there was no nuisance until the consulting rooms were built, and that the 20 years began to run from that date, so the defence of prescription was not available.